

Your Mississippi Non-Conviction Expungement Packet

What this packet is

This is a five-part self-help packet for the Mississippi non-conviction pathway in Miss. Code Ann. Section 99-19-71(4). It is prepared from the facts you verified against your records.

Packet contents

1. Your Mississippi Non-Conviction Expungement Packet
2. Petition for Expunction of Record
3. Order Granting Expunction of Record
4. Certificate of Service and Attachment Checklist
5. Filing Instructions, Next Steps, and When to Get Legal Help

Records to have beside you

- Compare the court, filing location, cause number, and your legal name against the certified disposition and docket sheet.
- Confirm an actual arrest and release, then copy the exact charge, citation, classification, dates, arrest name, aliases, agency identifier, and disposition wording from the records rather than memory.
- Insert the participant-supplied certified disposition as Exhibit A and docket sheet as Exhibit B; the generated assembly checklist is not an attachment.
- Do not sign in advance. Sign the Petition and Verification in the physical presence of a notary after taking an oath or affirmation, and have the notary complete the certificate and official stamp.
- Use the court-approved MCIC identifier channel and remove the confidential addendum from participant and service copies.
- Confirm the prosecuting office, current service address, timing, and any approval-as-to-form practice with the court of origin.
- Ask the court of origin about the filing method, fee or waiver, and number of copies.
- Leave signature and service-time fields blank until you perform those acts, and leave prosecutor and court fields for those officials.
- Stop and get legal help if the disposition, venue, related pending matter, prosecutor treatment, or immigration effect is unclear.

Signing and notarization

DO NOT SIGN THE PETITION IN ADVANCE. You must sign the Petition and its Verification in the physical presence of a notary public. Bring satisfactory identification. The notary must administer an oath or affirmation, witness the signature, complete the notarial certificate, and affix the official notary stamp. The packet is not filing-ready until those steps are complete.

Important limits

LegalEase does not file this packet and does not guarantee relief. Before filing, confirm the filing method, local form preference, fee or waiver treatment, copy count, and service practice with the records office of the court that handled the case. Stop and get legal help when a record is ambiguous or a stopping condition in the instructions applies.

IN THE MUNICIPAL COURT OF THE CITY OF JACKSON, MISSISSIPPI

CITY OF JACKSON

PLAINTIFF

VS.

CASE NO. 2024-MC-001234

MORGAN SAMPLE

DEFENDANT/PETITIONER

PETITION FOR EXPUNCTION OF RECORD

COMES NOW Morgan Sample, Petitioner in the above-styled and numbered cause, appearing pro se, and files this Petition for Expunction of Record pursuant to Miss. Code Ann. Section 99-19-71(4), and in support thereof would show unto the Court the following, to-wit:

1.

Miss. Code Ann. Section 99-19-71(4) provides that, upon petition therefor, a justice, county, circuit, or municipal court shall expunge the record of a case in which an arrest was made, the person arrested was released, and the case was dismissed, the charges were dropped, there was no disposition of the case, or the person was found not guilty at trial.

2.

Petitioner was arrested on or about January 10, 2024 in Jackson, Hinds County, Mississippi, within the jurisdiction of this Court, by Jackson Police Department and was charged with Simple possession of marijuana, classified in the record as Misdemeanor, as stated on the synthetic docket, in violation of Miss. Code Ann. Section 41-29-139(c)(2)(A). Petitioner was thereafter released following the arrest, as confirmed by release on January 10, 2024, shown on the synthetic booking record. The certified court record states that on or about May 3, 2024 the case ended as follows: Charge dropped. The statutory case-ending category is Charges dropped. A certified copy of the disposition is attached as Exhibit A. A copy of the docket sheet is attached as Exhibit B.

3.

Petitioner has experienced adverse employment and background-screening consequences connected with the arrest record.

4.

Petitioner is entitled to expunction of the aforesaid arrest record pursuant to Miss. Code Ann. Section 99-19-71(4), and the interests of justice would be served by granting the requested relief.

5.

Petitioner presents the following relevant identifying information in support of this Petition:

- (a) Name used at the time of arrest: Morgan Sample
- (b) Aliases shown on the record: None shown on the synthetic record
- (c) Date of Birth: April 12, 1990
- (d) Social Security Number: XXX-XX-6789
- (e) Date of Arrest: January 10, 2024
- (f) Arresting Agency: Jackson Police Department
- (g) Agency Number: JPD-2024-009876
- (h) Charge at Arrest: Simple possession of marijuana
- (i) Code Section or Ordinance: Miss. Code Ann. Section 41-29-139(c)(2)(A)
- (j) Charge Classification: Misdemeanor, as stated on the synthetic docket
- (k) Race: Black
- (l) Sex: Female

WHEREFORE, PREMISES CONSIDERED, Petitioner respectfully prays that this Honorable Court enter an Order of Expunction directing that all records of the arrest and charge described herein be expunged and that the Clerk forward a certified, sealed copy of the Order and the approved MCIC identifier material to the Mississippi Department of Public Safety, Criminal Information Center, Jackson Police Department, and these other recordkeeping agencies identified from the record: Hinds County Sheriff's Office.

Respectfully submitted

Morgan Sample, Petitioner, Pro Se

MORGAN SAMPLE

123 Magnolia Avenue, Jackson, Mississippi 39201

Telephone: 601-555-0142

Email: morgan.sample@example.test

VERIFICATION

I, Morgan Sample, being first duly sworn, state that I am the Petitioner in this action; that I have read the foregoing Petition for Expunction of Record; and that the factual statements contained in the Petition are true and correct to the best of my knowledge, information, and belief.

MORGAN SAMPLE, PETITIONER PRO SE

STATE OF MISSISSIPPI

COUNTY OF _____

Signed and sworn to or affirmed before me on this _____ day of _____, 20____, by Morgan Sample.

NOTARY PUBLIC

Printed Name: _____

My Commission Expires: _____

Commission Identification No.: _____

[OFFICIAL NOTARY STAMP]

IN THE MUNICIPAL COURT OF THE CITY OF JACKSON, MISSISSIPPI

CITY OF JACKSON

PLAINTIFF

VS.

CASE NO. 2024-MC-001234

MORGAN SAMPLE

DEFENDANT/PETITIONER

ORDER GRANTING EXPUNCTION OF RECORD

THIS CAUSE came on for consideration of the Petition for Expunction of Record. The Court, having considered the Petition and the record and being satisfied that it has jurisdiction over the parties and subject matter, FINDS, ORDERS, AND ADJUDGES as follows:

1.

This Court handled the above-styled and numbered case and has authority to consider the requested relief.

2.

Morgan Sample was arrested on January 10, 2024 by Jackson Police Department for Simple possession of marijuana, classified as Misdemeanor, as stated on the synthetic docket, in violation of Miss. Code Ann. Section 41-29-139(c)(2)(A).

3.

Petitioner was released following the arrest, as confirmed by release on January 10, 2024, shown on the synthetic booking record.

4.

The case ended on May 3, 2024 with this disposition: Charge dropped. The disposition falls within the statutory category Charges dropped.

5.

Petitioner is entitled to expunction under Miss. Code Ann. Section 99-19-71(4).

The record subject to this Order is identified as follows:

- (a) Name used at the time of arrest: Morgan Sample
- (b) Aliases shown on the record: None shown on the synthetic record
- (c) Date of Birth: April 12, 1990
- (d) Social Security Number: Provided in the confidential MCIC addendum; last four 6789
- (e) Date of Arrest: January 10, 2024
- (f) Arresting Agency: Jackson Police Department
- (g) Agency Number: JPD-2024-009876
- (h) Charge at Arrest: Simple possession of marijuana
- (i) Code Section or Ordinance: Miss. Code Ann. Section 41-29-139(c)(2)(A)
- (j) Charge Classification: Misdemeanor, as stated on the synthetic docket
- (k) Race: Black
- (l) Sex: Female

IT IS ORDERED AND ADJUDGED that the record of the arrest and charge identified above in Case No. 2024-MC-001234 is expunged.

IT IS FURTHER ORDERED that the Mississippi Criminal Information Center and every other person or agency maintaining records within the scope of this Order shall purge, expunge, or destroy those records as required by Mississippi law, subject only to any nonpublic record of the expunction order expressly permitted to be retained by statute.

IT IS FURTHER ORDERED that the Clerk shall forward a certified copy bearing the Court's seal, together with the court-approved MCIC identifier material, to the Mississippi Department of Public Safety, Criminal Information Center, Jackson Police Department, and these additional custodians: Hinds County Sheriff's Office. The confidential MCIC identifier addendum is incorporated into the certified nonpublic processing copy when the court approves that method.

SO ORDERED AND ADJUDGED, this the ____ day of _____, 20____.

MUNICIPAL COURT JUDGE

APPROVED AS TO FORM

Optional block for the prosecuting authority when the court's local practice uses it.

PROSECUTING ATTORNEY

CERTIFIED TRUE COPY

The clerk completes this certification after entry of the Order and affixes the Court's seal.

MUNICIPAL COURT CLERK

Date: _____

[COURT SEAL]

CONFIDENTIAL MCIC IDENTIFIER ADDENDUM

COURT AND MCIC PROCESSING COPY - DO NOT INCLUDE IN PUBLIC OR SERVICE COPIES. This addendum uses the approved synthetic-review layout. A real packet requires the court of origin to confirm the identifier-delivery method before participant delivery.

Name used at the time of arrest: Morgan Sample

Aliases shown on the record: None shown on the synthetic record

Date of Birth: April 12, 1990

Social Security Number: 111-22-6789

Date of Arrest: January 10, 2024

Arresting Agency: Jackson Police Department

Agency Number: JPD-2024-009876

Charge at Arrest: Simple possession of marijuana

Code Section or Ordinance: Miss. Code Ann. Section 41-29-139(c)(2)(A)

Charge Classification: Misdemeanor, as stated on the synthetic docket

Race: Black

Sex: Female

Court Case Number: 2024-MC-001234

Disposition: Charge dropped

Identifier Delivery Method: Confidential MCIC identifier addendum

Method Confirmation Source: Synthetic internal-review fixture; court confirmation required before participant delivery

IN THE MUNICIPAL COURT OF THE CITY OF JACKSON, MISSISSIPPI

CITY OF JACKSON

PLAINTIFF

VS.

CASE NO. 2024-MC-001234

MORGAN SAMPLE

DEFENDANT/PETITIONER

CERTIFICATE OF SERVICE

I, Morgan Sample, Petitioner pro se, certify that on the date stated below, I caused a true and correct copy of the foregoing Petition for Expunction of Record and proposed Order Granting Expunction of Record to be delivered to City Prosecutor for the City of Jackson. Service-address status: To be confirmed before filing or service. Service address: To be confirmed with the Jackson Municipal Court before filing or service. The confidential MCIC identifier addendum must not be included in the service copy.

Method of service: _____

Date of service: _____

MORGAN SAMPLE, PETITIONER PRO SE

The filing package is not complete until the participant-supplied court records are inserted behind the Petition. A generated checklist or divider is not a court record.

- (a) Exhibit A - Certified disposition: Synthetic review divider only; certified Exhibit A must be inserted before filing
- (b) Exhibit B - Docket sheet: Synthetic review divider only; docket Exhibit B must be inserted before filing

INSTRUCTIONS

Filing Instructions, Next Steps, and When to Get Legal Help

Where this packet goes

File in the court that handled the case. Before filing, contact that court's records office to confirm whether the petition uses the existing cause number or a new filing number and whether the court has a preferred local form or filing method.

OFFICE

Records office or clerk for IN THE MUNICIPAL COURT OF THE CITY OF JACKSON, MISSISSIPPI in Jackson, Hinds County, Mississippi

Confirm the fee or waiver

No universal fee amount is printed in this packet. Ask the records office of the court that handled the case whether a filing fee applies to this subsection (4) petition.

If a fee applies and you cannot afford it, ask that court which pauper's affidavit or fee-waiver process it accepts. Do not assume a statewide amount or waiver form.

Service and local practice

Deliver a public service copy to City Prosecutor for the City of Jackson using this service-address entry: To be confirmed with the Jackson Municipal Court before filing or service. Deliver it only after the court or prosecutor confirms the address and local timing. Do not include the confidential MCIC identifier addendum. The certificate leaves the method, date, and signature blank until service occurs. Ask the records office whether advance notice, prosecutor approval as to form, or another local step is required.

Copies and records

Keep a participant copy without the confidential MCIC identifier addendum. Prepare service copies without that addendum. Give sensitive identifiers only through the court-approved MCIC channel. Keep a certified or conformed copy of any signed order and ask the records office how many filing, judge, prosecutor, and participant copies the local court wants.

WHAT TO BRING

Notarized filing original with Exhibits A and B, protected MCIC material through the approved channel, and the number of public copies confirmed by the court

Limits after an order

The proposed order directs covered custodians to purge, expunge, or destroy the arrest and charge records as Mississippi law requires, subject only to a nonpublic record of the expunction order that a statute permits. Keep a certified copy of any signed order and answer later questions according to the law that applies to the particular question.

What happens next

1. Sign the Petition and Verification in the physical presence of a notary after the notary administers an oath or affirmation and checks your identification. (after the packet facts are final and before filing)
2. Insert the certified disposition as Exhibit A and the docket sheet as Exhibit B, then file the notarized petition, proposed order, and materials required by local practice with the court of origin. (after every record fact, exhibit, and local filing step is confirmed)

3. Provide the prosecuting authority the copy required by the court and complete the certificate only when service occurs. (at the time directed by the court's local practice)
4. Watch for a hearing notice, request for another record, objection, or signed order. (after filing; the statute supplies no universal decision deadline)
5. If an order is signed, obtain and keep a certified or conformed copy and ask the court which listed agencies receive it and whether you must deliver copies. (promptly after entry of the order)
6. Follow up with the court and the agencies named in the order if the public record does not change after they have had time to process it. (on the timetable those offices confirm)

Stop and get legal help

- The docket says 'passed to the file,' 'retired to the file,' remanded, or uses another ambiguous case-ending entry. The repository does not establish that this route covers that entry. Stop here and get help before you go further.
- The case moved between courts or the court of origin is unclear. Venue and caption treatment require legal review before filing. Stop here and get help before you go further.
- The case involved nonadjudication, pretrial intervention, diversion, intervention court, or drug court. Those are different Mississippi routes with different legal treatment. Stop here and get help before you go further.
- A related charge or a co-defendant matter remains pending. Filing may affect or disclose an open matter. Stop here and get help before you go further.
- The prosecuting authority refuses to approve the proposed order as to form where the local court expects that approval. Do not sign for the prosecutor or file as though approval was given. Stop here and get help before you go further.
- You are not a United States citizen or have any immigration concern. Record clearing can interact with immigration law and requires qualified immigration advice. Stop here and get help before you go further.

Before you file

- Compare the court, filing location, cause number, and your legal name against the certified disposition and docket sheet.
- Confirm an actual arrest and release, then copy the exact charge, citation, classification, dates, arrest name, aliases, agency identifier, and disposition wording from the records rather than memory.
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ABOUT THIS PACKET

Mississippi Non-Conviction Expungement Packet under Miss. Code Ann. Section 99-19-71(4)

ROUTE

MS:non-conviction-expungement-for-dismissal-no-disposition-or-acquittal

PACKET SPECIFICATION

ms-nonconviction-expungement-99-19-71-4 v2.0.0

PREPARED FROM VERIFICATION

5db1df6b9c18875816333351b234817a910de50bd8fe5bf7a0f1111111111111

This packet was prepared from the answers you confirmed at final verification. If any of those answers change, the packet has to be prepared again - a filing built on a superseded answer is worse than no filing.